

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.376	0.197	0.009	0.281	0.452
Trial Fee-Shifting	0.386	0.139	0.011	0.285	0.357
Complete Fee-Shifting	0.406	0.172	0.185	0.304	0.563

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.426	0.058	0.001	0.341	0.190
Trial Fee-Shifting	0.370	0.190	0.001	0.288	0.414
Complete Fee-Shifting	0.500	0.000	0.000	0.500	0.000